

COMMITTEE ON NATURAL RESOURCES, ENERGY & WATER
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2263
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 45-812.01, Arizona Revised Statutes, is amended
3 to read:

4 45-812.01. Groundwater savings facility permit; Colorado
5 River; replenishment

6 A. A person may apply to the director for a groundwater savings
7 facility permit and may operate a groundwater savings facility only
8 pursuant to a permit.

9 B. The director may issue a permit to operate a groundwater savings
10 facility if the director determines that all of the following apply:

11 1. Operation of the facility will cause the direct reduction or
12 elimination of groundwater withdrawals in an active management area or an
13 irrigation non-expansion area by means of delivery of water other than
14 groundwater pumped from within that active management area or irrigation
15 non-expansion area that the recipient will use in lieu of groundwater that
16 the recipient would otherwise have used.

17 2. The applicant will deliver water other than groundwater pumped
18 from within the active management area or irrigation non-expansion area in
19 which the groundwater savings facility is located to an identified
20 groundwater user who will use and agrees in writing to use the water
21 delivered to the facility on a gallon-for-gallon substitute basis directly
22 in lieu of groundwater that otherwise would have been pumped from within
23 the active management area or irrigation non-expansion area.

24 3. The in lieu water is the only reasonably available source of
25 water for the recipient other than groundwater pumped from within the same
26 active management area or irrigation non-expansion area in which the
27 groundwater savings facility is located.

1 4. The water delivered as in lieu water would not have been a
2 reasonable alternative source of water for the recipient except through
3 the operation of the groundwater savings facility.

4 5. The water delivered to the recipient as in lieu water was not
5 delivered before October 1, 1990.

6 6. The applicant has submitted a plan satisfactory to the director
7 that describes how the applicant will prove the quantity of groundwater
8 saved at the facility each year and what evidence will be submitted with
9 the applicant's annual report as required by section 45-875.01 to prove
10 the groundwater savings. The plan may rely on the following factors:

11 (a) The recipient's cost of pumping groundwater relative to the
12 cost of in lieu water and alternative sources of water available to the
13 recipient.

14 (b) The historic quantity of groundwater pumped by the recipient at
15 the location of the intended use of the in lieu water.

16 (c) The recipient's anticipated demand for groundwater and
17 anticipated total demand for water, including groundwater.

18 (d) The recipient's legal right to withdraw or use groundwater
19 pursuant to chapter 2 of this title.

20 (e) The amount of central Arizona project water for which the
21 recipient anticipates accepting delivery.

22 (f) The historic amount of power used to pump groundwater at the
23 groundwater savings facility compared to the power used during a year in
24 which the recipient received in lieu water.

25 (g) The factors that prevent the recipient from using the water
26 delivered as in lieu water without the operation of the groundwater
27 savings facility.

28 (h) Any other criteria the director may deem to be relevant.

29 C. NOTWITHSTANDING ANY OTHER LAW, A PERSON MAY ONLY USE OR CONVEY
30 [FIRST PRIORITY MAIN STEM] COLORADO RIVER WATER THAT IS DIVERTED FROM THE
31 MAIN STEM OF THE COLORADO RIVER FOR THE PURPOSES OF REPLENISHMENT IN AN
32 ACTIVE MANAGEMENT AREA IF THE WATER IS DELIVERED TO A PERMITTED FACILITY
33 THAT IS OWNED BY MULTI-COUNTY WATER CONSERVATION DISTRICT ESTABLISHED
34 PURSUANT TO TITLE 48, CHARTER 22 OR A PERMITTED GROUNDWATER SAVINGS
35 FACILITY ON STATE LANDS OR PRIVATE LAND.

36 Enroll and engross to conform

37 Amend title to conform

And, as so amended, it do pass

GAIL GRIFFIN
CHAIRMAN

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